

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:

Mr. Justice Md. Shohrwardi

Criminal Appeal No. 787 of 2020

Md. Sultan

-Vs-

The State

None appears

.... For the accused appellant

Mr. Tapan Kumar Biswas, Advocate

.....For the respondent No.2

Mr. S.M. Golam Mostofa Tara, DAG with

Mr. Md. Shaifour Rahman Siddique Saif, AAG

..... for the respondents

Heard on 03.08.2023

Judgment on 08.08.2023

This appeal under Section 410 of Code of Criminal Procedure, 1898 is directed against the judgment and order of conviction and sentence dated 14.06.2016 passed by Additional Sessions Judge, First Court, Sirajganj in Sessions Case No. 129 of 2015 arising out of C.R. No. 452 of 2014 (Sadar) convicting the appellant under section 138 of the Negotiable Instruments Act, 1881 and sentencing him thereunder to suffer simple imprisonment for 08(eight) months and to pay a fine of Tk. 12,00,000 (twelve lac) i.e. thrice of the cheque amount.

The prosecution case, in short, is that the accused Md. Sultan issued a cheque being No. 9374873 for payment of Tk. 400,000(four lac) on 12.08.2014 to pay the sale proceeds of poultry feed. The said cheque was presented on 28.08.2014 for encashment to the bank and was dishonored with remarks “insufficient fund”. After that, the complainant issued a legal notice on 02.09.2014 through the learned Advocate for payment of the cheque amount by register post with AD but the accused did not pay the cheque amount within time. Thereafter the complainant filed the case on 08.10.2014.

The complainant was examined under section 200 of the Code of Criminal Procedure, 1898 and the learned Magistrate, Cognizance Court No. 1, Sirajgonj was pleased to take cognizance of the offence under section 138 of the Negotiable Instruments Act, 1881. Thereafter, the accused surrendered before the learned Magistrate and obtained bail. After that, the Sessions Judge, Sirajganj sent the case to the Additional Sessions Judge, First Court, Sirajganj for trial. During trial, the charge was framed on 28.04.2015 in presence of the accused. The prosecution examined 2 witnesses to prove the charge against the accused. The trial Court by impugned judgment and order convicted the appellant and sentenced him as stated above against which he filed the instant appeal.

P.W. 1 Md. Hassan Imam Talukder is the complainant. He stated that he is the proprietor of ‘Satata Poultry and Feed’ and the accused purchased poultry feed and issued cheque No. 9374873 dated 12.08.2014 for payment of the sale proceeds amounting to Tk. 400,000. Thereafter, he presented the cheque to the bank on 28.08.2014 and the same was dishonored with a remarks ‘insufficient fund’ on 28.08.2014. After that, he issued a legal notice on 02.09.2014 for payment of the cheque amount but the accused did not pay the cheque amount. Thereafter, he filed the case. He proved the complaint petition as exhibit-1 and his signature as exhibit-1/1 and 1/2. He proved the dishonoured cheque as exhibit-2 and the dishonour slip as exhibit-3. He proved

the postal receipt and AD as exhibit-4. The defence did not cross-examine P.W. 1.

P.W. 2 Md. Taleb Taher is the Manager, AB Bank, Sirajganj. He stated that the complainant presented the cheque No. 9374873 for payment of Tk. 4,00,000 (four lac) issued by accused Md. Sultan. The bank sent the cheque for clearing to Dhaka Bank which was returned with a remarks “insufficient fund”. Thereafter, the bank issued the dishonour slip. During cross- examination, he stated that accused Md. Sultan is not personally known to him.

None appears on behalf of the appellant.

The learned Advocate Mr. Tapan Kumar Biswas appearing on behalf of the respondent No. 2 submits that the appellant issued cheque No. 9374873 dated 12.08.2014 for payment of Tk. 400,000(four lac) which was dishonoured on 28.08.2014 with a remarks “insufficient fund”. Thereafter, the complainant issued legal notice on 02.09.2014 upon the accused through registered post with AD for payment of the cheque amount but the accused did not pay the cheque amount within time. Therefore, the accused committed an offence under section 138 of the Negotiable Instruments Act, 1881 and he prayed for dismissal of the appeal.

I have considered the submission of the learned Advocate Mr. Tapan Kumar Biswas who appeared on behalf of the respondent No. 2, perused the evidence, impugned judgment and order passed by the trial court and the records.

On perusal of the records, it appears that the accused Md. Sultan issued cheque No. 9374873 dated 12.08.2014 for payment of Tk. 400,000(four lac) which was dishonoured on 28.08.2014 with a remarks “insufficient fund”. Thereafter, the complainant issued legal notice on 02.09.2014 for payment of the cheque amount but the accused did not pay the cheque amount. P.W. 1 proved the complaint petition as exhibit-1 and his signature as exhibit-1/1 and

1/2. He also proved the cheque as exhibit-2, dishonoured slip as exhibit-3 and postal receipt with AD as exhibit-4. The defence did not cross-examine P.W.1. The evidence of P.W. 1 as regards the issuance of the cheque by the accused and subsequent dishonour of cheque and issuances of the notices through register post is not denied by the defence.

There is a presumption under section 118(a) of the Negotiable Instruments Act, 1881 that every negotiable instrument was made or drawn for consideration, and that every such instrument, when it has been accepted, indorsed, negotiated or transferred, was accepted, indorsed, negotiated or transferred for consideration. The presumption under Section 118(1) is rebuttable. The accused neither adduced evidence nor cross-examined P.W. 1 to rebut the presumption under Section 118(a) of the said Act. Therefore, I am of the view that the accused issued the cheque in favour of the payee-complainant for consideration. After service of notice in writing the accused failed to pay the cheque amount. Thereby the accused committed an offence under Section 138 of the Negotiable Instruments Act, 1881 and the complainant filed the case following all procedure provided in Section 138 of the Negotiable Instruments Act, 1881. The prosecution proved the charge against the accused beyond all reasonable doubt and the trial Court after proper assessment of evidence legally passed the impugned judgment and order.

So far sentence passed by the trial court, I am of the view that the impugned sentence passed by the trial court is too harsh, and ends of justice would be best served if the sentence passed by the trial court is modified as under;

The appellant is found guilty of the offence under section 138 of the Negotiable Instruments Act, 1881 and he is sentenced thereunder to suffer simple imprisonment for 03(three) months and fine of Tk. 400,000(four lac).

The complainant respondent No. 2 is entitled to get the cheque amount. The trial court is directed to allow the complainant respondent No. 2 to

withdraw 50% of the cheque amount deposited by the appellant. The trial Court is further directed to do the needful in accordance with law.

In the result, the appeal is disposed of with modification of sentence.

Send down the lower Court's record at once.